



United States
Attorney's Office
District of New Jersey



Pharmacy LLC Agrees To Resolve False Claims Act Allegations Of Billing For Drugs Not Dispensed

Tuesday, February 4, 2025

For Immediate Release

U.S. Attorney's Office, District of New Jersey

NEWARK, N.J. – A Plus Pharmacy LLC, the former owner of A Plus Pharmacy, a pharmacy located in Manalapan, New Jersey, has agreed to pay \$350,000 to resolve allegations that it violated the False Claims Act by knowingly billing a federal health care program for certain medications that it never dispensed, Acting U.S. Attorney Vikas Khanna announced today.

According to the contentions of the United States in the settlement agreement:

The United States alleged that, from January 1, 2015, through February 27, 2023, A Plus Pharmacy LLC caused the submission of claims for reimbursement to the Medicare Part D Program for certain drugs that were never dispensed to beneficiaries. The government contends that inventory records showed that A Plus Pharmacy LLC did not purchase enough of these medications from wholesalers to fill the prescriptions billed to the federal health care program.

The resolution obtained in this matter was the result of a coordinated effort between the U.S. Attorney's Office for the District of New Jersey and the Justice Department's Civil Division, Commercial Litigation Branch, Fraud Section, with assistance from the U.S. Marshals Service.

The government is represented by Assistant U.S. Attorneys Robert Toll and Kruti Dharia of the Opioid Abuse Prevention and Enforcement Unit and Senior Trial Counsel Jennifer Cihon in the Civil Division's Commercial Litigation Branch (Fraud Section).

The government's pursuit of these matters illustrates the government's emphasis on combating healthcare fraud. One of the most powerful tools in this effort is the False Claims Act. Tips and complaints from all sources about potential fraud, waste, abuse, and mismanagement can be reported to the Department of Health and Human Services, at 1-800-HHS-TIPS (800-447-8477).

The claims settled by the agreement are allegations only, and there has been no admission of liability.

[a_plus_pharmacy.settlement_agreement.pdf](#)

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Topic

HEALTHCARE FRAUD

Component

[USAO - New Jersey](#)

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